

Section 4.

SECOND SCHEDULE

RATES OF DUTIES ON MATCHES						£	s.	d.
For every 1,000 containers in which there are not more than 10 matches						0	19	11
For every 1,000 containers in which there are more than 10 matches, but not more than 20 matches						1	19	10
For every 1,000 containers in which there are more than 20 matches, but not more than 30 matches						2	19	9
For every 144 containers in which there are more than 30 matches, but not more than 50 matches						0	14	5
For every 144 containers in which there are more than 50 matches—								
For the first 50 matches						0	14	5
For every additional 5 matches or part of 5 matches in excess of 50 matches						0	1	5½
And so in proportion for any less number of containers.								

Section 7.

THIRD SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Geo. 6. c. 68.	The Isle of Man (Customs) Act, 1938.	Section five.
3 & 4 Geo. 6. c. 49.	The Isle of Man (Customs) Act, 1940.	Sections six and seven and the Fifth Schedule.
11 & 12 Geo. 6. c. 61.	The Isle of Man (Customs) Act, 1948.	Sections three and four and the Third Schedule.

CHAPTER 59

Licensing Act, 1949

ARRANGEMENT OF SECTIONS

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Section

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Section

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Part I—Existing State Management Districts.

Part II—Ancillary functions exercisable by Secretary of State.

Part III—Supplemental provisions as to exercise of functions of Secretary of State.

Second Schedule—Section Forty of Act of 1910 as amended by this Act.

Third Schedule—Certification of Club Premises for Music and Dancing.

Fourth Schedule—Enactments Repealed.

Part I—Enactments repealed as from passing of Act.

Part II—Enactments repealed as from appointed day.

An Act to extend State management to new towns and to make further provision as respects State management districts; to amend the law relating to licensing justices and confirming and compensation authorities; to provide for the payment of allowances to members of licensing courts and courts of appeal in Scotland; to prohibit in certain cases the supply and consumption of intoxicating liquor outside the permitted hours and to amend the law as to permitted hours, and to make further provision as respects refreshment houses and spirit and wine dealers and as respects the removal of off-licences; to restrict the employment of persons under eighteen in bars; to amend the Licensing Planning (Temporary Provisions) Acts, 1945 and 1946, and to extend the provisions of the Finance Act, 1946, as to the suspension of justices' licences; to make further provision as to certain notices; to provide for the application of the licensing laws to the Isles of Scilly; and for purposes connected with the matters aforesaid. [30th July 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

STATE MANAGEMENT DISTRICTS.

Extension of
State manage-
ment to new
towns.

1.—(1) The provisions of this section shall have effect for extending to all new towns the State management of the liquor trade in operation in the districts specified in Part I of the First Schedule to this Act (being the Carlisle, Cromarty Firth and

Gretna districts specified in the Second Schedule to the Act of 1921) and for declaring the powers exercisable by the Secretary of State for the purposes of State management.

(2) Any such district or new town is in this Part of this Act referred to as a "State management district".

(3) In this Part of this Act the expression "new town" means an area designated as the site of a proposed new town under section one of the New Towns Act, 1946, by an order (whether made before or after the passing of this Act) which has become operative :

Provided that—

(a) except in this section the said expression does not include any such area after the development corporation established therefor has been dissolved ;

(b) if, by reason of the revocation or variation of any such order as aforesaid, land ceases to be, or to be comprised in, the site of a proposed new town, the Secretary of State shall by order direct that as from such date as may be specified in the order (being the date on which the revocation or variation takes effect or the earliest date thereafter which appears to the Secretary of State practicable) the land shall be deemed no longer to be comprised in a State management district.

The power conferred on the Secretary of State under proviso (b) to this subsection to make orders shall be exercisable by statutory instrument.

(4) The Secretary of State may in the State management districts sell intoxicating liquor for consumption either on or off the premises where it is sold, and may carry on any of the activities specified in Part II of the First Schedule to this Act in accordance with the provisions of the said Part II ; and the provisions of Part III of that Schedule shall have effect in relation to the carrying on by him of those activities:

Provided that nothing in this subsection or the said Part II shall authorise the Secretary of State, at any premises where he carries on a business of selling intoxicating liquor for consumption off, but not on, the premises, to carry on any other business except the sale of mineral waters or other non-intoxicating drinks for consumption off the premises, tobacco or matches.

(5) There shall be constituted, in accordance with the following provisions of this section, local advisory committees for the purpose of assisting the Secretary of State in the exercise of his functions relating to the State management districts.

(6) The development corporation for every new town shall, as soon as may be after the passing of this Act or the coming into operation of the order under section one of the New Towns Act, 1946, designating the site of the new town, whichever is the

PART I.
—cont.

later, consult with every local authority whose area includes any part of the new town and with the licensing justices for every licensing district which includes any part thereof, and also with such other persons and bodies of persons as appear to the corporation requisite to be consulted, as to the constitution of the local advisory committee for the new town, and shall then prepare a draft scheme for the constituting of the committee.

(7) A development corporation by whom a draft scheme is prepared under the last foregoing subsection shall—

- (a) send a copy thereof to every such local authority and to the licensing justices for every such licensing district as aforesaid, together with a notice specifying the time (not being less than twenty-eight days) within which representations with respect to the draft scheme may be made to the corporation ;
- (b) publish in one or more local newspapers circulating in the area of the new town a notice specifying the time aforesaid and a place or places where copies of the draft scheme will be available for inspection at all reasonable hours ;
- (c) submit to the Secretary of State a scheme for the constitution of the local advisory committee either in terms of the draft or with such modifications as appear expedient to the corporation, having regard to any representations duly made ;
- (d) forward to the Secretary of State, together with the scheme, any representations so made as aforesaid.

(8) Any scheme under this section—

- (a) shall specify the number of members of the advisory committee, the persons by whom and manner in which the several members are to be appointed, and the period for which they are to hold office ;
- (b) may contain provisions with respect to the manner in which the scheme may be varied and as to the duration thereof and the making of a new scheme to take effect on the expiry of the previous scheme ;
- (c) shall have effect when confirmed by the Secretary of State, either as submitted to him or subject to any modifications made by him after consultation with the development corporation.

(9) The provisions of the three last foregoing subsections shall apply in relation to each of the districts specified in Part I of the First Schedule to this Act—

- (a) with the substitution for references to the development corporation of references to the persons acting as a local advisory committee in the district at the passing of this Act ;

- (b) with the omission of the reference to the coming into operation of the order designating the site of the new town; and
- (c) subject to the provisions of the last foregoing paragraph, with the substitution for references to a new town of references to the district;

and until the scheme for the constitution of the local advisory committee for the district has been confirmed by the Secretary of State the persons mentioned in paragraph (a) of this subsection shall be the local advisory committee for the district.

(10) In this section the expression "local authority" means the council of a county, county borough or county district.

(11) The Secretary of State shall cause such accounts to be kept in relation to the State management districts as the Treasury may direct, and shall cause an annual report to be presented to Parliament as to his procedure in connection with the management of the liquor trade in those districts.

(12) In the application of this section to Scotland—

- (a) the expression "local authority" means a county, town or district council;
- (b) the expression "licensing justices" means "licensing court";
- (c) any reference to a licensing district shall be construed as a reference to any burgh, county or district for which there is a separate licensing court.

2.—(1) No person, other than a person acting on behalf of the Secretary of State, shall sell intoxicating liquor by retail in a State management district, and no person, other than as aforesaid, shall supply intoxicating liquor in any licensed premises or club in a State management district:

Provided that this subsection shall not apply—

- (a) to anything done in premises which were licensed premises or a registered club when State management came into operation in the district in which the premises are situated and have continued to be licensed premises or a registered club, as the case may be, since that time;
- (b) to anything done under the written authority of the Secretary of State and in accordance with such terms and conditions as may be specified by him;
- (c) to anything done on premises of a class specified by order of the Secretary of State.

(2) Any person who contravenes the last foregoing subsection shall be liable on summary conviction to a fine not exceeding thirty pounds.

(3) The power to make orders conferred by paragraph (c) of the proviso to subsection (1) of this section shall be exercisable by statutory instrument, and any order under that paragraph may be made either generally or as respects any particular State management district.

PART I.
—cont.

Restriction of sale and supply, otherwise than by Secretary of State, of intoxicating liquor in State management districts.

PART I.
—cont.

(4) In this section the expression " licensed premises " includes any premises or place where intoxicating liquors are sold by retail under a licence, whether a justices' licence or not.

Acquisition of
land.

3.—(1) For the purposes of his functions under this Part of this Act the Secretary of State may—

- (a) by agreement purchase or take on lease any land, whether in a State management district or elsewhere ;
- (b) subject to the provisions of this section, acquire by compulsory purchase any licensed premises in a State management district and any land in such a district required for the erection or extension of, or otherwise for use in connection with, any premises in a State management district in which the sale of intoxicating liquor by retail is, or is to be, carried on on behalf of the Secretary of State :

Provided that before acquiring any land in a new town (whether by agreement or compulsorily) the Secretary of State shall consult with the development corporation.

(2) The following provisions shall have effect in relation to the compulsory acquisition under this Part of this Act of licensed premises in a State management district—

- (a) the provisions of the Finance Act, 1946, as to the suspension of justices' licences where licensed premises are acquired or proposed to be acquired compulsorily shall not have effect as respects any such compulsory acquisition or any proposal therefor ;
- (b) after the service of a notice to treat for any such acquisition of any interest in licensed premises in a State management district, the licence shall not be removable under section twenty-four of the Act of 1910 (which relates to ordinary and special removals of licences from one premises to other premises).

(3) For the purposes of the two last foregoing subsections, a licence shall be treated as being in force notwithstanding that it may be in suspense under any enactment other than the Finance Act, 1946, and references in those subsections to licensed premises shall be construed accordingly, and as including the site of licensed premises.

(4) The powers of compulsory purchase conferred on the Secretary of State by subsection (1) of this section shall be exercisable for the purchase of any particular land on his being authorised to purchase the land in accordance with the provisions of the Acquisition of Land (Authorisation Procedure) Act, 1946, and that Act shall apply accordingly as if paragraph (b) of subsection (1) of section one thereof (which refers to the compulsory purchase of land by the Minister of Transport under certain enactments) included a reference to any compulsory purchase by the Secretary of State under this section.

(5) The power of compulsory purchase conferred by paragraph (b) of subsection (1) of this section shall not extend to the purchase of any interest in land, being an interest belonging to a development corporation; but nothing in this subsection or in subsection (2) of section two or in section five of the New Towns Act, 1946 (which relate to the powers of a development corporation to dispose of land) shall be taken to limit the power of such a corporation, with any consent of the Minister of Town and Country Planning requisite under the said section five, to dispose under that section of any such interest on a purchase by agreement under paragraph (a) of subsection (1) of this section, or to limit the power of the said Minister to give any such consent.

(6) So much of section two of the Ordnance Board Transfer Act, 1855, as provides that, where a Secretary of State ceases to hold office, the land mentioned in that section shall by virtue of that Act be transferred to and vested in his successor as therein provided shall apply to the Secretary of State in relation to land vested in him for the purposes of his functions under this Part of this Act.

(7) Any officer of the Valuation Office of the Inland Revenue Department, or any other person if authorised by the Secretary of State, may at any reasonable time enter upon land for the purpose of surveying it in connection with any proposal for the compulsory purchase of the land, or any adjacent land, under this section, and any person who wilfully obstructs a person acting in the exercise of a right of entry conferred under this section shall be liable on summary conviction to a fine not exceeding five pounds, or in the case of a second or subsequent offence twenty pounds:

Provided that a person proposing to exercise a power of entry conferred under this section—

- (a) shall, if so required, produce some duly authenticated document showing his authority;
- (b) shall not demand admission as of right to any land which is occupied unless twenty-four hours' notice of the intended entry has been given to the occupier.

(8) In the application of this section to Scotland—

- (a) for any reference to the Acquisition of Land (Authorisation Procedure) Act, 1946, there shall be substituted a reference to the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947;
- (b) in paragraph (b) of subsection (2), for the words from "section twenty-four," to the end of the paragraph there shall be substituted the words "paragraph 10 of Part II of the Sixth Schedule to the Finance Act, 1942 (which relates to the removal of certificates from one premises to other premises)";

PART I.
—cont.

- (c) in paragraph (b) of subsection (1) the words from the beginning to "section," and subsection (5), shall be omitted ;
- (d) any reference to a licence includes a reference to a certificate as defined in Part VII of the Licensing (Scotland) Act, 1903.

Provision of
alternative
accommoda-
tion where
licensed
premises
acquired.

4.—(1) Notwithstanding anything in subsection (2) of section five of the New Towns Act, 1946 (which relates to the provision of accommodation where land is acquired by a development corporation), a development corporation shall not have any duty to afford, to a person formerly carrying on a business of selling intoxicating liquor by retail on land in a State management district, any opportunity of obtaining alternative accommodation for such a business.

(2) Without prejudice to the provisions of the last foregoing subsection, where licensed premises in a new town are acquired by the Secretary of State under the last foregoing section, and in consequence of the acquisition the resident tenant or manager quits the premises, the provisions of subsection (2) of section five of the New Towns Act, 1946, shall have effect, so far as relates to the provision of living accommodation for the resident tenant or manager, as if the premises had been acquired by the development corporation under the said Act of 1946.

(3) The Secretary of State shall so far as is practicable secure that a resident tenant or manager of licensed premises acquired by the Secretary of State under the last foregoing section shall have the opportunity, if the business previously carried on in the premises is continued by the Secretary of State, of being employed in the carrying on thereof on terms not less favourable than those appropriate to a manager employed in a business such as was carried on in the premises before their acquisition.

(4) In this section the expression "resident tenant or manager," in relation to premises acquired by the Secretary of State as aforesaid, means a person who, immediately before the acquisition thereof by the Secretary of State, was residing in the premises and was either the holder or one of joint holders of the justices' licence in respect thereof or was employed as manager of the premises by the holder of the licence.

Provisions as
to licences in
suspense in
State
management
districts.

5.—(1) Where a justices' licence is in suspense under any enactment, and the premises in respect of which it was last in force for all purposes are, or the site of those premises is, in a State management district, the Secretary of State on the application of the holder of the licence shall direct that as from the date of the direction, or such later date as may be agreed between the Secretary of State and the holder of the licence, the licence shall be extinguished :

Provided that where the licence is in suspense under the Finance Act, 1942, this subsection shall not have effect if—

PART I.
—cont.

- (a) a notice to treat has been served for the compulsory acquisition under section three of this Act of any interest in the premises or site, or
- (b) such an interest has been acquired under that section by agreement.

(2) In respect of the extinguishment of a licence under this section the Secretary of State shall pay to the holder of the licence such compensation as may be agreed or, in default of agreement, as may be determined by the Lands Tribunal.

(3) For the purposes of any reference to the Lands Tribunal under the last foregoing subsection, section five of the Acquisition of Land (Assessment of Compensation) Act, 1919 (which relates to costs) shall have effect with the substitution for the references to the acquiring authority of references to the Secretary of State.

(4) Compensation under this section shall be determined without regard to the fact that by reason of the provisions of section two of this Act the revival or removal of the licence would or might be prevented.

(5) In the application of this section to Scotland, subsections (2) and (3) of this section shall have effect as if, for the words "the Lands Tribunal" there were substituted the words "the Lands Tribunal for Scotland", and the following proviso were inserted at the end of the said subsection (2), that is to say:

" Provided that until sections one to three of the Lands Tribunal Act, 1949, come into force as respects Scotland the expression 'the Lands Tribunal for Scotland' shall be construed as meaning an official arbiter appointed under the Acquisition of Land (Assessment of Compensation) Act, 1919, and the following provisions of the said Act of 1919, that is to say, section three thereof (which relates to procedure), section five thereof (which relates to costs) as modified by sections five and ten of the said Act of 1949, but with the substitution for references to the acquiring authority of references to the Secretary of State, and section six thereof (which relates to the statement of special cases) as modified by section ten of the said Act of 1949, shall apply for the purposes of this subsection "

6. All expenditure of the Secretary of State under this Part of Expenses and this Act shall be defrayed out of moneys provided by Parliament, receipts of and all receipts of the Secretary of State in connection therewith Secretary of State shall be paid into the Exchequer.

PART I.
—*cont.*
**Consequential
amendment.**

7. In section eighteen of the Act of 1921 (which defines the licensed premises to which that Act applies as including premises where the Secretary of State carries on business as the successor of the Central Control Board (Liquor Traffic)), for the words "carries on business as the successor of the Board" there shall be substituted the words "carries on a business of selling intoxicating liquor by retail in the exercise of powers conferred by Part I of the Licensing Act, 1949".

**General
provisions as
to application
of Part I
to Scotland.**

8. Subject to any express provision contained in this Part of this Act, the following provisions shall have effect for the general application thereof to Scotland:—

- the expression "intoxicating liquor" means excisable liquor;
- the expression "justices' licence" means a certificate as defined in Part VII of the Licensing (Scotland) Act, 1903;
- the expression "licensed premises" means premises in respect of which a certificate as defined in the said Part VII has been granted and is in force;
- the expression "registered club" has the same meaning as in Part V of that Act.

PART II.

LICENSING AUTHORITIES.

Counties.

9.—(1) As respects a licensing district being a petty sessional division of a county—

- (a) the licensing justices for the purposes of the Act of 1910 shall be a committee of the justices acting in and for the petty sessional division, to be known as the divisional licensing committee, instead of the whole body of justices acting as aforesaid;
- (b) the confirming authority and the compensation authority for the said purposes shall be a committee of quarter sessions to be known as the county confirming and compensation committee, instead of quarter sessions.

(2) In accordance with paragraph (b) of the last foregoing subsection, section five of the Act of 1910 (which enables parts of counties for which quarter sessions have been customarily held separately to be treated for the purposes of the functions of quarter sessions as confirming and compensation authorities as if those parts were separate counties) shall be amended by the substitution, in subsection (2) of that section, for the words "of quarter sessions as confirming and compensation authority" of the words "of a county confirming and compensation committee and of quarter sessions in relation to that committee".

10.—(1) As respects a licensing district being a county borough, the confirming authority and the compensation authority for the purposes of the Act of 1910 shall be a committee of the borough justices, to be known as the borough confirming and compensation committee, instead of the whole body of borough justices.

PART II
—cont.
County
boroughs and
City of
London.

(2) References in this Part of this Act to a county borough shall be construed, in accordance with subsection (4) of section two of the Act of 1910, as including the City of London.

11.—(1) A divisional licensing committee shall be appointed by the justices acting in and for the petty sessional division, and the committee shall be so appointed in the month of October, November or December for the year beginning with the following first day of January.

Constitution
and procedure
of licensing
authorities
in counties.

(2) A divisional licensing committee shall consist of such number of the said justices as those justices may determine, not being less than five nor more than fifteen.

(3) Notwithstanding anything in paragraph (a) of subsection (1) of the last but one foregoing section, where the total number of the said justices (excluding any who are under a general disqualification from sitting as members of the committee) is less than ten, the committee may if the justices so determine consist of all the justices.

(4) A casual vacancy arising in a divisional licensing committee from death, resignation, or otherwise may be filled up by the justices by whom the committee is appointed.

(5) The quorum of a divisional licensing committee shall be three.

(6) The members of a divisional licensing committee retiring at the end of a year may be re-appointed, and if for any cause members are not appointed in any year to succeed the retiring members, the retiring members may continue to act until their successors are appointed.

(7) The mode of appointment of county confirming and compensation committees, and the number and quorum of those committees, shall be determined by rules made by quarter sessions with the approval of the Secretary of State.

(8) Quarter sessions may, if they think fit, make rules as to the procedure of a county confirming and compensation committee (so far as not already provided for), and as to the costs to be incurred in proceedings on the confirmation of new justices' licences and the persons by whom those costs are to be paid; and in subsection (3) of section thirteen of the Act of 1910 (which provides that a confirming authority may award such costs as they think just to the party who succeeds in the proceedings before them) the words from "to the party" to "before them" shall cease to have effect.

PART II.
—cont.

Constitution
and procedure
of licensing
authorities
in county
boroughs and
City of
London.

12.—(1) Subject to the provisions of this section, section three of the Act of 1910 (which provides for the constitution of borough licensing committees) shall apply to a borough confirming and compensation committee, with the substitution of references to such a committee for references to a borough licensing committee; and subsection (8) of the last foregoing section shall apply to a borough confirming and compensation committee, with the substitution—

(a) of a reference to such a committee for the reference to a county confirming and compensation committee;

(b) of a reference to the borough justices for the reference to quarter sessions.

(2) The borough licensing committee for a county borough or a borough confirming and compensation committee shall be appointed in the month of October, November or December for the year beginning with the following first day of January.

(3) The borough licensing committee for a county borough shall not consist of less than five justices nor of more than fifteen.

(4) A borough confirming and compensation committee shall not consist of less than nine justices nor of more than fifteen, and not more than one third of the members of the committee shall be members of the borough licensing committee.

Division of
counties for
compensation
purposes.

13. For the purposes of the powers and duties relating to compensation of a county confirming and compensation committee, quarter sessions may if they think fit divide their area into districts, and in that case the foregoing provisions of this Part of this Act, and the provisions of the Act of 1910, shall operate as if for the purposes of the said powers and duties those districts were separate counties having the same quarter sessions:

Provided that the same committee shall for the purposes of the said powers and duties be the confirming and compensation committee for each of the districts.

Repeal of s. 8
of Act of 1910.

14. Section eight of the Act of 1910 (which empowers in certain cases justices of a county to act in a borough having a separate commission of the peace) shall cease to have effect.

Expenses of
members of
licensing
courts and
courts of
appeal in
Scotland.

15.—(1) Part VI (except section one hundred and fourteen) of the Local Government Act, 1948 (which provides for the payment of certain allowances to members of local authorities and other bodies) shall apply with any necessary modifications to members of licensing courts and courts of appeal, as if such courts were among the bodies included in subsection (1) of section one hundred and eleven as read with subsection (3) of section one hundred and eighteen of that Act.

(2) Any amounts by way of allowances payable under the last foregoing subsection shall be payable by the council of the county

or burgh which is liable, under subsection (3) or (4) or (5) of section eight of the Licensing (Scotland) Act, 1903, to defray any necessary expenses in respect of the proceedings of any such court, and subsection (6) of that section shall apply accordingly.

PART II.
—cont.

(3) Any increase attributable to the provisions of this section in the sums payable out of moneys provided by Parliament under Part II of the Local Government Act, 1948, shall be defrayed out of moneys so provided.

16.—(1) In subsection (1) of section forty of the Act of 1910 Disqualifica-
(which disqualifies a justice from acting or being a member of any tion of
committee for the purposes of that Act if, among other cases, he justices.
holds any share in a company carrying on a brewing or other
business in the licensing district, or in the district or districts
adjoining the licensing district, in which the justice usually acts),
after the words " this Act," in each place where they occur, there
shall be inserted the words " in any county or county borough,"
and for the words from " in the licensing district " to " usually
acts " there shall be substituted the words " in that county or
county borough."

(2) A person shall be disqualified from being appointed a member of a divisional or borough licensing committee, or of a county or borough confirming and compensation committee, if he holds any such share as is mentioned in the said subsection (1) unless before his appointment as a member of the committee he has disclosed the fact that he has such a holding to the justices appointing him; and a member of any such committee who acquires any such share shall cease to be a member thereof, but may be re-appointed if before his re-appointment he has disclosed the fact that he has such a holding to the justices re-appointing him:

Provided that (without prejudice to the penal provisions of subsection (4) of the said section forty) no act done by any justice disqualified by this subsection, or by a justice who by virtue thereof has ceased to be a member of a committee, shall be invalid by reason only of the disqualification or cessation of membership.

(3) Notwithstanding anything in the last foregoing subsection, a person who is the beneficial owner of any such share held by him (whether his beneficial ownership extends to the whole holding or to part thereof or to an interest therein only) shall not be appointed or re-appointed to be a member of any such committee unless the justices appointing him are satisfied that the extent to which the company in question carries on or is interested in the business of brewing, distilling, making of malt for sale or retailing of malt or of any intoxicating liquor is so small in comparison with its whole business that the fact that the said person is interested in the company affords no reasonable ground for suggesting that he is not a proper person to be a member of such a committee.

PART II.
—*cont.*

(4) Save as aforesaid, a justice shall not be disqualified under the said subsection (1) by reason only that he holds any such share as aforesaid.

(5) In subsection (4) of the said section forty (which provides that if any justice declared by the Act of 1910 not to be qualified to act thereunder knowingly acts as a justice for any of the purposes thereof, he shall be liable to a penalty) for the words from "declared by this Act" to "purposes thereof" there shall be substituted the words "knowing that the circumstances are such that under this Act he is disqualified for acting for any of the purposes thereof, acts as a justice for that purpose".

(6) In this section the expression "share" includes stock.

(7) In accordance with the provisions of this Act, the said section forty shall have effect as set out in the Second Schedule to this Act.

Commence-
ment of
Part II.

17.—(1) The provisions of this Part of this Act, except section fifteen thereof, shall come into operation on such date as the Secretary of State may by order appoint.

(2) An order of the Secretary of State under this section may contain such transitional provisions as appear to the Secretary of State expedient in consequence of the coming into operation of the said provisions of this Part of this Act.

(3) The power conferred on the Secretary of State by this section to make orders shall be exercisable by statutory instrument.

PART III.

MISCELLANEOUS.

Special hours
certificates for
certain hotels
and
restaurants.

18.—(1) If, on an application in that behalf, the licensing justices are satisfied as respects licensed premises in any part of the metropolis, being a part specified for the purposes of this section by order of the Secretary of State,—

- (a) that the premises are a hotel or restaurant to which this section applies ;
- (b) that a music and dancing licence is in force as respects the premises ; and
- (c) that the whole or any part of the premises is structurally adapted, and bona fide used, or intended to be used, for the purposes of providing for persons resorting to the premises music and dancing and substantial refreshment to which the sale of intoxicating liquor is ancillary,

the licensing justices shall grant a certificate under this section (hereinafter referred to as a "special hours certificate") as respects the premises or part thereof as to which they are satisfied as mentioned in paragraph (c) of this subsection, and the provisions of section twenty-one of this Act shall apply accordingly.

(2) The hotels and restaurants to which this section applies are—

- (a) premises for which the excise licence for the time being in force is a licence the duty in respect of which is the reduced duty payable under section forty-five of the Finance (1909-10) Act, 1910 ;
- (b) premises for which the excise licence for the time being in force is a licence granted in pursuance of regulations under subsection (5) of the said section forty-five (which relates to the granting of licences on the provisional payment of reduced duty in the case of new hotels and restaurants) ;
- (c) premises structurally adapted and bona fide used as mentioned in subsection (1) of the said section forty-five, being premises as to which the Secretary of State certifies that he is satisfied that no application under the said section forty-five has been made in respect of the period for which the excise licence for the time being in force was granted but that if such an application had been made such a licence could properly have been granted as is mentioned in paragraph (a) or paragraph (b) of this subsection.

(3) An application for a certificate of the Secretary of State under paragraph (c) of the last foregoing subsection shall be made in such form, and accompanied by such evidence, as may be prescribed by regulations of the Secretary of State.

(4) Where a special hours certificate has been granted in respect of premises, or a part of premises, in respect of which the Secretary of State has granted a certificate under the said paragraph (c), and has not been revoked, the holder of the licence shall at such time in each subsequent year as may be so prescribed make a return to the Secretary of State, in such form and accompanied by such evidence as may be so prescribed, of the receipts in the preceding year from the sale of intoxicating liquor and of the total receipts in that year from the business of all descriptions carried on by him in the premises ; and if

- (a) the return required by this subsection is not duly made, or
- (b) the Secretary of State is not satisfied, by any such return, that the receipts from the sale of intoxicating liquor in the preceding year were less in the case of a restaurant than three-fifths, and in the case of any other premises than one-half, of the said total receipts,

the Secretary of State may give notice to the holder of the licence that the Secretary of State is not satisfied as aforesaid.

In this subsection the expression " year " means a period of twelve months ending with the thirty-first day of March.

PART III.
—*cont.*

(5) The powers of the licensing justices under this section may be exercised by them at their general annual licensing meeting or any transfer session.

Special hours
certificates for
certain clubs.

19.—(1) If, on an application in that behalf as respects the premises of a registered club, being premises situated in a part of the metropolis for the time being specified by an order under subsection (1) of the last foregoing section, the magistrate is satisfied—

- (a) that a certificate granted under the Third Schedule to this Act is in force as respects the premises; and
- (b) that the whole or any part of the premises is structurally adapted, and bona fide used, or intended to be used, for the purpose of providing for the members of the club music and dancing and substantial refreshment to which the supply of intoxicating liquor is ancillary,

the magistrate shall grant a certificate under this section (hereinafter referred to as a "special hours certificate") as respects the premises or the part thereof as to which he is satisfied as mentioned in paragraph (b) of this subsection, and the provisions of section twenty-one of this Act shall apply accordingly.

(2) Section eighty-one of the Act of 1910 (which empowers constables to enter licensed premises for the purpose of preventing or detecting offences) shall apply to any premises as respects the whole or any part whereof a special hours certificate is in force under this section as it applies to licensed premises.

Grant of
special hours
certificates
limited to part
only of year.

20. Where on an application for a special hours certificate the licensing justices or the magistrate are or is satisfied that the premises or part of premises to which the application relates are used, or intended to be used, as mentioned in paragraph (c) of subsection (1) of section eighteen of this Act, or paragraph (b) of subsection (1) of the last foregoing section, as the case may be, during part only of the year, the justices or magistrate may grant a certificate limited so as to be in force only during that part of the year.

Later
permitted
hours where
special hours
certificate in
force.

21.—(1) The following provisions of this section shall apply as respects the permitted hours for any premises or part of premises in respect of which a special hours certificate has been granted.

(2) The holder of the licence or the secretary of the club, as the case may be, may give notice to the superintendent of the police of the district wherein the premises are situated that from such date (not being earlier than fourteen days after the giving of the notice) as may be specified therein the provisions of the next following subsection are to have effect as respects the premises or part of premises to which the special hours certificate relates.

(3) As from the date specified under the last foregoing subsection, but subject to the provisions of this section, while the special hours certificate is in force the following provisions shall have effect as respects the premises or part of premises to which the certificate relates, that is to say :—

- (a) notwithstanding anything in the Act of 1921, the permitted hours shall be the hours from half past twelve in the afternoon to two o'clock on the following morning, with a break from three o'clock until half past six in the afternoon, so however that this paragraph shall not affect the sale, supply or consumption of intoxicating liquor at any time on Sunday ;
- (b) paragraph (d) of section five of the Act of 1921 (which authorises the consumption of intoxicating liquor with a meal within half an hour after the conclusion of the permitted hours if the liquor was supplied during the permitted hours and served at the same time as the meal and for consumption with the meal) shall have effect, in relation to the conclusion, on any day except Sunday, of the second part of the permitted hours, as if the words " with a meal " and the words from " and served " to " with the meal " were omitted ; and
- (c) section three of the Act of 1921 (which provides for an extension of an hour in certain premises as respects intoxicating liquor sold for consumption with a meal) shall not apply :

Provided that—

- (i) if, on any occasion when the permitted hours would apart from this proviso end at two o'clock in the morning, music and dancing is not provided after midnight, the permitted hours shall cease at midnight, and if on any such occasion the provision of music and dancing comes to an end at a time between midnight and two o'clock in the morning the permitted hours shall cease at that time ;
- (ii) nothing in this subsection shall affect the sale or consumption of intoxicating liquor at any drinking bar.

(4) If while the provisions of the last foregoing subsection have effect the holder of the licence or the secretary of the club, as the case may be, gives notice to the superintendent of the police of the district wherein the premises are situated that from such date (not being earlier than fourteen days after the giving of the notice) as may be specified therein the said provisions are to cease to have effect, they shall cease to have effect accordingly.

PART III.
—cont.

(5) While the provisions of subsection (3) of this section have effect as respects any premises or part of premises in respect of which a special hours certificate is in force under section eighteen of this Act, there shall be kept affixed in some conspicuous place therein a notice stating the effect of the said provisions; and if this subsection is not complied with the holder of the licence shall be liable on summary conviction to a fine not exceeding five pounds.

Revocation of
special hours
certificates.

22.—(1) At any time while a special hours certificate is in force, the Commissioner of Police for the metropolis may apply to the licensing justices if the certificate was granted under section eighteen of this Act, or to the magistrate if it was granted under section nineteen thereof for the revocation of the certificate on the ground that while the certificate has been in force—

- (a) the premises or part of premises to which the certificate relates have not been used as mentioned in paragraph (c) of subsection (1) of section eighteen or paragraph (b) of subsection (1) of section nineteen of this Act, as the case may be; or
- (b) a person has been convicted of having on the said premises or part contravened section four of the Act of 1921 (which prohibits the sale, supply or consumption of intoxicating liquor outside the permitted hours),

or that on the whole the persons resorting to the premises or part are there, at times when the sale or supply of intoxicating liquor therein is lawful by virtue only of the special hours certificate, for the purpose of obtaining intoxicating liquor rather than for the purpose of dancing or obtaining refreshments other than intoxicating liquor; and if the justices or magistrate are or is satisfied as to the ground of the application they or he may revoke the certificate.

(2) At any time while a special hours certificate granted under section nineteen of this Act is in force the Commissioner of Police for the metropolis may apply to the magistrate for the revocation of the certificate on the ground that the revocation thereof is expedient by reason of the occurrence of disorderly or indecent conduct on the premises or part to which the certificate relates; and if the magistrate is satisfied as to the ground of the application he shall revoke the certificate.

(3) Without prejudice to the provisions of subsection (1) of this section, if, in the case of a special hours certificate granted under section eighteen of this Act—

- (a) at any time while the certificate is in force no music and dancing licence is in force as respects the premises or part of premises to which the certificate relates; or

- (b) on an application under section forty-five of the Finance (1909-10) Act, 1910, the applicant fails to satisfy the Commissioners of Customs and Excise of the matters requisite for the reduction of duty under that section ; or
- (c) the Secretary of State gives a notice under subsection (4) of section eighteen of this Act,
- the certificate shall thereby be revoked.

(4) Without prejudice to the provisions of subsection (1) of this section, if, in the case of a special hours certificate granted under section nineteen of this Act, at any time while the certificate is in force no certificate under the Third Schedule to this Act is in force, the special hours certificate shall thereby be revoked.

23.—(1) In the foregoing provisions of this Part of this Act—

- (a) the expression “the magistrate”, in relation to any premises, means a metropolitan police magistrate for the police court division in which the premises are situated ; and
- (b) the expression “music and dancing licence” means a licence granted by the London County Council for the keeping or using of any premises for public dancing, singing, music or other public entertainment.

(2) References in the said provisions to providing music and dancing and refreshment shall be construed as references to providing the same on every weekday, subject to any break in the provision thereof either for a period or periods not exceeding two weeks in any twelve successive months or on any special occasion or by reason of any emergency ; and references in the said provisions to providing dancing shall be construed as references to providing facilities for dancing which are adequate having regard to the number of persons for whose reception in the premises or part of premises in question provision is made.

(3) A certificate purporting to be issued on behalf of the Commissioners of Customs and Excise and certifying that any premises are such as are specified in paragraph (a) or (b) of subsection (2) of section eighteen of this Act shall be receivable in evidence and shall be sufficient proof, unless the contrary is shown, that the premises are such premises.

(4) The Secretary of State may make rules as to the procedure on any application under the foregoing provisions of this Part of this Act.

(5) Any notice under the foregoing provisions of this Part of this Act shall be in writing, and may be given by post.

(6) Any power conferred on the Secretary of State by the said provisions to make an order, rules or regulations shall be exercisable by statutory instrument.

PART III.
—*cont.*
Prohibition of
consumption
of intoxicating
liquor outside
permitted
hours at
parties
organised for
gain.

24.—(1) It shall be unlawful outside the permitted hours to supply or consume intoxicating liquor at any party organised for gain and taking place in premises kept or habitually used for the purpose of parties so organised at which intoxicating liquor is consumed :

Provided that this subsection shall not apply to anything done at a party taking place on licensed premises, or at a canteen, mess or registered club as part of the activities of the canteen, mess or club, or at any party in respect of which an occasional licence has been granted.

(2) In this section the expression "outside the permitted hours" means, as respects anything done at any place on any day, outside the hours on that day during which, by or under section one or section two of the Act of 1921, intoxicating liquor is allowed to be sold in licensed premises in the licensing district in which the said place is :

Provided that the break in the permitted hours shall not be treated as outside the permitted hours.

(3) If any person—

- (a) supplies intoxicating liquor in contravention of subsection (1) of this section ;
- (b) being the occupier of any premises, permits them to be used for a party, and that subsection is contravened at the party ;
- (c) being a person concerned in the organisation of a party permits any person to supply or consume intoxicating liquor thereat in contravention of the said subsection (1) ; or
- (d) being a person licensed to sell intoxicating liquor, delivers such liquor outside the permitted hours to any premises kept or habitually used as mentioned in that subsection or permits it to be so delivered ;

he shall be guilty of an offence and liable on summary conviction to a fine not exceeding fifty pounds or, in the case of a second or subsequent offence, to imprisonment for a term not exceeding three months or to a fine not exceeding one hundred pounds or to both such imprisonment and such fine.

(4) Any person who consumes intoxicating liquor in contravention of subsection (1) of this section shall be guilty of an offence and liable on summary conviction to a fine not exceeding five pounds or, in the case of a second or subsequent offence, to a fine not exceeding thirty pounds.

(5) For the purposes of this section, a party shall be deemed to have been organised for gain if any pecuniary advantage accrued

or was intended to accrue to any person concerned in the organisation thereof as a result of the party, and in determining whether any such advantage so accrued or was intended to accrue no account shall be taken of any expenditure incurred in connection with the party :

Provided that a party shall not be deemed to have been organised for gain by reason only that any person concerned in the organisation thereof took part or intended to take part in the playing of any game, or made or intended to make bets with respect thereto, if the arrangements were such as to give him no greater chance of winning than any other person.

(6) For the purpose of this section, a person shall be deemed to have been concerned in the organisation of a party if he took any part in procuring the assembly of the party or in acting as host or assisting the host at the party.

(7) Nothing in this section shall affect the delivery or supply of intoxicating liquor to, or the consumption of intoxicating liquor by, a person in premises in which he is for the time being residing ; and in determining for the purposes of this section whether a party is being held in any premises, or whether any premises are kept or habitually used for the purpose of holding parties, the presence of persons residing in the premises shall be disregarded.

(8) In the case of premises in a part of the metropolis specified for the purposes of subsection (1) of section eighteen of this Act, the following provisions shall have effect—

(a) before the first day of February, nineteen hundred and fifty, any time at which the consumption of intoxicating liquor would be lawful on premises of a club as respects which subsection (3) of section twenty-one of this Act had effect for the time being shall be treated for the purposes of this section as not being outside the permitted hours ;

(b) where it is proposed that such premises shall become premises of a registered club, application may be made for the grant of a certificate under the Third Schedule to this Act and of a special hours certificate under section nineteen of this Act before the registration of the club and its occupation of the premises, and accordingly references in that Schedule and section to a registered club and premises thereof shall include references to a club proposed to be registered and to premises proposed to be occupied by the club.

25.—(1) If a justice of the peace is satisfied upon information on oath that there is reasonable ground for supposing that any premises within the jurisdiction of the justice are kept or habitually used for the holding of parties at which the provisions

Supplementary provisions as to parties organised for gain.

PART III.
—*cont.*

of subsection (1) of the last foregoing section are contravened, he may grant a warrant under his hand authorising any constable named in the warrant, together with any other constables, to enter the premises, if need be by force, at any time or times within one month from the date of the warrant, and to search the premises, and to seize and remove any intoxicating liquor found therein which there is reasonable ground to suppose is in the premises for the purpose of being supplied or consumed in contravention of the provisions of the last foregoing section.

(2) Any constable may demand the name and address of any person found in any premises in which he seizes any liquor as aforesaid, and if any person required under this subsection to give his name and address fails to give them, or gives a false name or address, he shall on summary conviction be liable to a fine not exceeding five pounds.

(3) In the event of any person being convicted of an offence under the last foregoing section in respect of the premises in which any liquor is seized under this section, the liquor so seized and the vessels containing the liquor shall be forfeited; and the provisions of section one hundred and five of the Act of 1910 (which relates to the application of forfeitures) shall apply to forfeitures under this section as they apply to forfeitures under that Act.

Increase of
penalties for
offences under
Refreshment
Houses Act,
1860.

26.—(1) The court before which under section nine of the Refreshment Houses Act, 1860 (which imposes penalties for keeping unlicensed refreshment houses) a person is adjudged liable to forfeit any sum may, where it is proved that the said person has previously been convicted of an offence to which this section applies, make a disqualification order under this section.

(2) If, where by virtue of the last foregoing subsection the court have power to make a disqualification order under this section, a licence under the said Act of 1860 is in force as respects the refreshment house in question, the court may, in addition to or in substitution for the making of the disqualification order, adjudge that the licence shall be forfeited.

(3) Sections eighteen and thirty-two of the said Act of 1860 (which provide for penalties for obstructing the police from entering refreshment houses, for allowing unlawful gaming therein, for allowing prostitutes, thieves or disorderly or drunken persons to be therein and for permitting contraventions of licences under that Act) shall have effect as if those sections provided for the following penalties, that is to say—

(a) if the person convicted has not previously been convicted of an offence to which this section applies, a fine not exceeding five pounds;

- (b) if he has been previously convicted of such an offence, a fine not exceeding twenty pounds or forfeiture of his licence under the said Act of 1860 or both such fine and such forfeiture ;

PART III.
—cont.

and where in a case falling within paragraph (b) of this subsection the court impose forfeiture of a licence they may also make a disqualification order under this section.

(4) In accordance with the last foregoing subsection, in the said section eighteen for the words from " for the first offence " to the end of the section, and in the said section thirty-two for the words from " upon conviction thereof " to the end of the section there shall be substituted the words " be liable on summary conviction to the penalties provided by section twenty-six of the Licensing Act, 1949 ".

(5) A disqualification order under this section may, at the discretion of the court, be either—

- (a) an order disqualifying the person in question, for such period not exceeding five years from the date of the order as may be specified in the order, from holding or obtaining a licence under the said Act of 1860 ; or
- (b) an order prohibiting a licence under that Act from being granted within such period as aforesaid to any person in respect of the premises at which the offence in question was committed ; or
- (c) an order imposing both such a disqualification and such a prohibition :

Provided that any such order as is mentioned in paragraph (b) or (c) of this subsection shall not be made unless an opportunity has been given to any person interested in the premises and applying to be heard by the court to show cause why the order should not be made.

(6) Any licence obtained in contravention of a disqualification order made under this section shall be absolutely null and void to all intents and purposes.

(7) The offences to which this section applies are—

- (a) the keeping of a refreshment house in contravention of section nine of the said Act of 1860 ;
- (b) any offence under section eighteen or thirty-two of the said Act ; and
- (c) the commission by a person keeping a refreshment house of any offence against section sixty-five of the Act of 1910 or any offence against subsection (3) of section twenty-four of this Act committed in connection with any party at that refreshment house.

PART III.

—*cont.*

Relief against
disqualification
orders.

27.—(1) At any time while a disqualification order made under the last foregoing section is in force, a court of summary jurisdiction, on complaint by any person affected by the order, may revoke the order or vary it by reducing any period of disqualification or prohibition specified in the order.

(2) Where on a complaint made under this section the relief asked for is the revocation or variation of an order imposing such a prohibition as is mentioned in paragraph (b) of subsection (5) of the last foregoing section, or is or includes the revocation or variation of so much of an order under paragraph (c) of that subsection as imposes such a prohibition, any summons granted on the complaint shall be served on the chief officer of police of the police area in which the premises affected by the prohibition are situated.

(3) Any person who has made a complaint under this section and is aggrieved by the decision of the court on that complaint may appeal to quarter sessions.

Restriction of
retail sales by
spirit or wine
dealers
without
justices'
licence.

28.—(1) Subject to the provisions of this section, and notwithstanding anything in subsection (1) of section one hundred and eleven of the Act of 1910 (which enables spirit dealers and wine dealers in certain circumstances to take out retailers' off-licences without a justices' licence) the said subsection (1) shall not authorise a dealer to sell any spirits or wine by retail at any premises without a justices' licence except—

- (a) to a person holding an excise licence for the sale of intoxicating liquor ;
- (b) to a mess or registered club ;
- (c) for delivery outside Great Britain ; or
- (d) to a person engaged, at the premises in question or elsewhere, in any business carried on by the dealer.

(2) Where at the general annual licensing meeting next held after the passing of this Act a dealer in liquor of any description applies for a justices' licence authorising him to hold an excise licence for the sale by retail of liquor of that description at any premises, and proves to the satisfaction of the justices—

- (a) that at all times between the fifteenth day of November, nineteen hundred and forty-eight, and the date of the application an excise licence taken out by virtue of the said subsection (1) of section one hundred and eleven of the Act of 1910 has been in force, and
- (b) that the licence authorised the sale of liquor of the description in question at the premises to which the application relates, or, if the business which at the time of the application is being carried on in those premises was at any time since the said fifteenth day of November being carried on in other premises, then in those other premises,

his application shall be treated for the purposes of the Act of 1910 and of section seven of the Act of 1945 (which restricts the granting of new licences in licensing planning areas) as if it were an application for the renewal of such a justices' licence as aforesaid, and the provisions of the Act of 1910 as to the renewal of justices' licences shall apply accordingly.

PART III.
—cont.

(3) Where, during the period beginning with the passing of this Act and ending with the date on which the general annual licensing meeting is next held after that date, intoxicating liquor of any description is sold in the course of the business carried on at any premises, the provisions of subsection (1) of this section shall not apply to that sale if an excise licence authorising the sale of liquor of that description and taken out by virtue of the said subsection (1) of section one hundred and eleven of the Act of 1910 has been in force at all times since the fifteenth day of November, nineteen hundred and forty-eight, in respect of the premises at which that business has from time to time been carried on since that day.

(4) If at the said licensing meeting the person carrying on the business makes such an application as is mentioned in subsection (2) of this section, the period mentioned in the last foregoing subsection shall be extended until the determination of the application and, if the licence is granted, shall be further extended till the fifth day of April next following.

(5) A certificate purporting to be signed by an officer of Customs and Excise authorised in that behalf, stating that an excise licence authorising the sale by retail of intoxicating liquor of any description is, or was at any time specified in the certificate, in force in respect of any premises so specified, and that the licence was taken out by virtue of the said subsection (1) of section one hundred and eleven of the Act of 1910, shall be sufficient evidence of the facts stated in the certificate.

29. Paragraph (5) of section twenty-six of the Act of 1910 (which provides that the justices shall not make an order for the ordinary removal of a justices' licence unless they are satisfied that no objection is made by the owner of the premises from which the licence is to be removed, or by the holder of the licence, or by any other person whom the justices may determine to have the right to object to the removal) shall have effect, in relation to the making of an order for the removal of a justices' off-licence, as if for the words from "by the owner" to "any other person" there were substituted the words "by the holder of the licence or by any person, other than the holder of the licence".

30.—(1) If any person under the age of eighteen years is employed in any bar of licensed premises at a time when the bar is open for the sale or consumption of intoxicating liquor, the

Persons under
eighteen not
to be em-
ployed in bars.

PART III.
—*cont.*

holder of the licence shall be liable on summary conviction to a fine not exceeding five pounds in the case of a first offence, or twenty pounds in the case of a second or any subsequent offence.

(2) For the purposes of this section, a person shall not be deemed to be employed in a bar by reason only that in the course of his employment in some other part of the premises he enters the bar for the purpose of giving or receiving any message or of passing to or from some other part of the premises, being a part to or from which there is no other convenient means of access or egress and not being itself a bar.

(3) For the purposes of this section a person shall be deemed to be employed by the person for whom he works, notwithstanding that he receives no wages for his work.

(4) Where in any proceedings under this section it is alleged that a person was at any time under the age of eighteen, and he appears to the court then to have been under that age, for the purposes of the proceedings he shall be deemed then to have been under that age unless the contrary is shown.

(5) In this section the expression "bar" includes any place exclusively or mainly used for the sale and consumption of intoxicating liquor.

(6) In the application of this section to Scotland—

the expression "licence" means a certificate as defined in Part VII of the Licensing (Scotland) Act, 1903 ;

the expression "licensed premises" means premises in respect of which a certificate as defined in the said Part VII has been granted and is in force ;

the expression "intoxicating liquor" means exciseable liquor.

Terms of
appointment
of members
of licensing
planning
committees.

31. For subsection (3) of section two of the Act of 1945 (which provides that the term and conditions of office of a member of a licensing planning committee shall be such as may be determined by the Secretary of State on his appointment) there shall be substituted, as respects members of such committees holding office at the passing of this Act or appointed thereafter, the following subsection :—

"(3) The appointment of a member of any such committee (unless his office is earlier abolished by the expiration of this Act, by the variation under the next following section of the licensing planning area, or by the revocation thereunder of the order constituting that area) shall be for a term of three years, and shall be subject to such conditions as may be determined by the Secretary of State :

Provided that a member of such a committee appointed to fill a casual vacancy shall hold office only until the end of the term of office of the person in whose place he was appointed".

32. Proposals of a licensing planning committee under section five of the Act of 1945 may be varied by subsequent proposals formulated by the committee, and submitted to and confirmed by the Minister, in the like manner and subject to the like provisions as the original proposals.

PART III.
—*cont.*
Power to vary proposals of licensing planning committees.

33. Notwithstanding anything in subsection (1) of section six of the Act of 1945 (which prohibits ordinary or special removals to premises in a licensing planning area) such a removal may be authorised to premises in such an area which are licensed premises if the licensing justices are satisfied that the licensing planning committee have no objection to the removal.

Removals in licensing planning areas.

34.—(1) The provisions of section five of the Act of 1945 (which relates to the submission and approval of proposals by licensing planning committees) shall, as respects proposals to which this section applies, have effect subject to the following provisions of this section.

Simplification of procedure for licensing planning proposals in London.

(2) This section applies to proposals for planning removals within London and proposals for the surrender of licences in respect of premises in London, not being proposals for removals from or to a place in, or the surrender of licences in respect of premises in, any area for the time being designated by order of the Minister of Town and Country Planning as an area of large-scale re-development.

The power conferred on the said Minister by this subsection to make orders shall be exercisable by statutory instrument.

(3) Proposals to which this section applies shall be formulated by the appropriate sub-committee of the licensing planning committee instead of by that committee, and shall be submitted to that committee instead of to the Minister of Town and Country Planning; and accordingly in subsections (1) and (2) of the said section five references to the licensing planning committee shall in relation to proposals to which this section applies be construed as references to the appropriate sub-committee of that committee, and references to the Minister of Town and Country Planning shall in relation to such proposals be construed as references to the licensing planning committee.

(4) In relation to proposals to which this section applies the following provisions shall have effect in substitution for the provisions of subsections (3) and (4) of the said section five (which relate to the approval of proposals and provide for the hearing of objectors, and the holding of a public local inquiry in certain cases)—

- (a) if no objection to the proposals is made to the licensing planning committee within the time and in the manner stated in the notice of the proposals published by the

PART III.
—cont.

sub-committee under subsection (2) of the said section five, or if all objections so made are withdrawn, the licensing planning committee may, if they think fit, confirm the proposals, either with or without modifications;

- (b) in any other case, the licensing planning committee shall before confirming the proposals, afford to any person making an objection an opportunity of appearing before and being heard by the committee, and may then confirm the proposals either with or without modification.

(5) The coming into operation of an order under subsection (2) of this section, or of an order varying or revoking such an order, shall not affect the proceedings in relation to any proposals submitted for confirmation before the coming into operation of the order.

Licensing
Planning Acts
not to apply
in London to
restaurant
licences.

35. The Licensing Planning (Temporary Provisions) Acts, 1945 and 1946, shall not, in London, apply to licences which, under any enactment or by virtue of any condition imposed under subsection (1) of section fourteen of the Act of 1910, authorise the sale of intoxicating liquor only for consumption with a meal in a restaurant.

Power to
amend
constitution of
London
Licensing
Planning
Committee.

36.—(1) If, after consultation with the London quarter sessions and the London County Council it appears to the Secretary of State expedient so to do by reason of the reduction under any enactment (whether passed before or after the passing of this Act) of the number of petty sessional divisions in London, the Secretary of State may by order direct that sub-paragraphs (ii) and (iii) of paragraph (a) of subsection (2) of section ten of the Act of 1945 (which provide that the number of members of the London Licensing Planning Committee appointed by quarter sessions and by the London County Council respectively shall be twelve) shall have effect as if for the number twelve, in each place in which it occurs, there were substituted such lower number as may be specified in the order.

(2) The power to make orders conferred by this section shall be exercisable by statutory instrument.

Suspension of
licence where
business in
temporary
premises
discontinued.

37.—(1) Where the Commissioners of Customs and Excise are satisfied, on an application made to them for a certificate under this subsection,—

- (a) that a business carried on in licensed premises, being temporary premises, has been temporarily discontinued on account of those premises ceasing to be available or on account of the period specified in the certificate of the licensing planning committee, under section nine

of the Act of 1945, relating to the premises, and any extension of that period under subsection (3) of the said section nine, having expired; and

PART III.
—cont.

- (b) that the requirements of paragraph (b) of subsection (2) of section twelve of the Finance Act, 1946, are satisfied, that is to say that the removal of the licence to other premises, not being temporary premises, reasonably satisfactory to the person by whom the business was carried on would be prevented by the restriction on removals imposed by subsection (1) of section six of the Act of 1945, or by its being otherwise impracticable to provide such other premises as aforesaid,

they shall certify accordingly.

(2) Where a certificate is granted under this section, the like consequences shall ensue with respect to the justices' licence which was in force for the temporary premises immediately before the discontinuance of the business as would have ensued if the reason for the discontinuance had been a compulsory acquisition of the premises and the certificate had been given under subsection (2) of section twelve of the Finance Act, 1946 (which provides for justices' licences going into suspense on the compulsory acquisition of the premises), and accordingly—

- (a) the licence shall be, and shall be deemed to have been, in suspense by virtue of the said section twelve from the time of the discontinuance until the time when it is again in force for all purposes, or extinguished, by virtue of the provisions in that behalf in the First Schedule to the Finance Act, 1946;
- (b) subsections (4) and (5) of the said section twelve and the said First Schedule shall, so far as applicable, have effect with respect to the licence subject to the necessary modification that for any reference therein to compulsory acquisition of the premises there shall be substituted a reference to the premises becoming no longer available; and
- (c) the licence shall not be, and shall be deemed not to have been, avoided by virtue of subsection (3) of section nine of the Act of 1945 (which limits the time for which a licence may be in force for temporary premises) by reason of any period delimited under that section expiring after the discontinuance of the business, except so far as the said subsection (3) has effect on any further temporary premises removal of the licence after being in suspense.

38. Any provision of the Act of 1910 requiring a notice, or a Fixing of copy of a notice, to be fixed on the door of a church or chapel notices on church doors.

PART III.
—*cont.*

shall have effect as if it required the notice or copy to be fixed either on the door of the church or chapel or on some public and conspicuous place near the door thereof.

Permitted
hours in the
metropolis.

39.—(1) So much of subsection (2) of section one of the Act of 1921 as provides that the permitted hours on week days shall, in the case of licensed premises, be such as may be fixed by order of the licensing justices of the licensing district shall have effect subject to the following provisions of this section.

(2) As respects licensed premises in the metropolis, an order made by the licensing justices under the said subsection (2) shall not fix the permitted hours so as to end earlier than half past ten at night.

(3) Where by virtue of any such order as aforesaid, being an order in force immediately before the passing of this Act, the permitted hours are so fixed, as respects any licensed premises in the metropolis, as to end earlier than half past ten at night, the following provisions shall have effect, that is to say—

- (a) during the period beginning with the passing of this Act and ending with the date of the general annual licensing meeting or transfer sessions next held after the passing of this Act (whichever of the two first occurs) the order shall continue to have effect as if this section had not been enacted ;
- (b) notwithstanding anything contained in the Act of 1921 or in any rules made thereunder, the order may be revoked or varied by the licensing justices at the transfer sessions next held after the passing of this Act, if those sessions occur before the general annual licensing meeting next held as aforesaid ;
- (c) if at the general annual licensing meeting or transfer sessions mentioned in paragraph (a) of this subsection the licensing justices do not revoke the order or vary it so as to comply with the provisions of the last foregoing subsection, the order shall, on the expiration of the period mentioned in the said paragraph (a), cease to have effect as respects the said licensed premises.

Application
of licensing
laws to Isles
of Scilly.

40.—(1) As respects the Isles of Scilly the Secretary of State may by order provide—

- (a) for substituting, for the provisions of the Act of 1910 prohibiting the sale or supply of intoxicating liquor except as authorised by or under that Act, a prohibition on the sale or supply thereof except as authorised by annual or occasional permits granted by the Joint Police Committee for the Isles of Scilly and in accordance with such conditions as may be specified in the permits ;

- (b) for the exercise by that Committee of the functions of the licensing justices under the enactments relating to the permitted hours for the sale or supply of intoxicating liquor and of the functions of the local authority under the enactments relating to general and special orders of exemption.

PART III.
—cont.

(2) An order under this section may contain such supplemental and consequential provisions as appear to the Secretary of State necessary or expedient for the purposes of the order, including supplemental or consequential provisions excluding, modifying or adapting any enactment relating to the sale or supply of intoxicating liquor in its application to the Isles of Scilly.

(3) The power to make orders conferred by this section shall be exercisable by statutory instrument.

PART IV.

SUPPLEMENTARY.

41.—(1) The enactments specified in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule. Repeals.

(2) As respects the enactments specified in Part II of the said Schedule, this section shall come into operation on the date specified by order under section seventeen of this Act.

42.—(1) In this Act, unless the context otherwise requires, Interpretation.—the following expressions have the meanings hereby respectively assigned to them, that is to say—

“ Act of 1910 ” means the Licensing (Consolidation) Act, 1910 ;

“ Act of 1921 ” means the Licensing Act, 1921 ;

“ Act of 1945 ” means the Licensing Planning (Temporary Provisions) Act, 1945 ;

“ canteen ” means a canteen in which the sale or supply of intoxicating liquor is carried on under the authority of the Secretary of State or the Admiralty, or under an authorisation granted under regulation 60AA of the Defence (General) Regulations, 1939 ;

“ development corporation ” has the same meaning as in the New Towns Act, 1946 ;

“ London ” means the administrative county of London ;

“ mess ” means an authorised mess of members of His Majesty's naval, military or air forces ;

PART IV.
—*cont.*

“ police area ” means a police area within the meaning of section thirty of the Police Pensions Act, 1921, or a combined area constituted by an amalgamation scheme made under the Police Act, 1946, or a police area resulting from the division of any such combined area under section six of the said Act of 1946, and “ chief officer of police ” means, as respects any police area, the officer who is for the time being the chief officer of police of that area within the meaning of section thirty of the Police Pensions Act, 1921, or the chief constable of any such combined area, or area resulting from the division of a combined area, as aforesaid ;

“ registered ” in relation to a club means registered under the Act of 1910 ;

and other expressions have the same meaning as in the Act of 1910.

(2) A conviction for any offence shall not after five years from the date of the conviction be receivable in evidence against any person for the purpose of subjecting him under Part III of this Act to an increased fine or other penalty.

(3) Any power conferred by this Act on the Secretary of State or the Minister of Town and Country Planning to make an order shall be construed as including power in the like manner and subject to the like provisions to vary or revoke the order.

(4) Any reference in this Act to any other enactment shall, unless the context otherwise requires, be construed as a reference to that enactment as amended by or under any other enactment, including this Act.

Short title,
extent and
citation.

43.—(1) This Act may be cited as the Licensing Act, 1949.

(2) Part II of this Act, except section fifteen thereof, and Part III of this Act, except section thirty thereof, shall not extend to Scotland.

(3) This Act shall not extend to Northern Ireland.

(4) The Licensing Acts, 1910 to 1934, and this Act as it applies to England and Wales may be cited together as the Licensing Acts, 1910 to 1949.

(5) The Licensing (Scotland) Acts, 1903 to 1934, and this Act as it applies to Scotland may be cited together as the Licensing (Scotland) Acts, 1903 to 1949.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

STATE MANAGEMENT DISTRICTS.

PART I.

Existing State Management Districts.

The Carlisle district :—

The city of Carlisle, the petty sessional division of Cumberland Ward (except so much of the old parish of Castle Sowerby as is comprised in the parish of Dalston), so much of the old parish of Dalston as is comprised in the parish of Skelton in the petty sessional division of Penrith, the petty sessional division of Maryport, so much of the petty sessional division of Wigton as lies to the north-west of a line drawn parallel to and one-quarter of a mile south-east of the main road from Carlisle to Cockermouth, the petty sessional division of Longtown (except the parishes of Nichol Forest, Solport, and Bewcastle, and the old parish of Bellbank), and the parishes of Bothel and Threapland, Plumbland, Gilcrux and Broughton Moor and the old parishes of Tallentire and Dovenby, in the petty sessional division of Cockermouth, all in the county of Cumberland.

In the foregoing provisions of this Schedule the expression "old parish" means a parish as existing immediately before the coming into operation of the Cumberland Review Order, 1934.

The Cromarty Firth district :—

The burghs of Cromarty, Dingwall, and Invergordon, and the parishes of Rosskeen, Alness, Kiltearn, Dingwall, Urquhart, Resolis, Cromarty, and Fodderty (except that part of that parish which immediately before the coming into operation of section nine of the Water (Scotland) Act, 1949, was known as the special water district of Strathpeffer), in the county of Ross and Cromarty.

The Gretna district :—

The burgh of Annan, and the parishes of Annan, Canonbie, Cummertrees, Dornock, Gretna, Half Morton, Hoddorn, Kirkpatrick-Fleming and Middlebie, in the county of Dumfries.

PART II.

Ancillary Functions exercisable by Secretary of State.

1. The provision and maintenance in a State management district of hotels and inns where accommodation and meals are provided and intoxicating liquor is sold.

2. The provision and maintenance in a State management district of premises where meals and refreshments may be obtained, whether or not intoxicating liquor is sold thereat.

1ST SCH.
—cont.

3. The provision of entertainment or recreation at premises in a State management district provided by the Secretary of State for the sale of intoxicating liquor, meals or refreshments.

4.—(1) The brewing of beer (as defined in section fifty-two of the Finance (1909-10) Act, 1910), the blending, reducing or bottling of any intoxicating liquor, and, in the Carlisle district specified in Part I of this Schedule, the manufacture of table waters, that is to say, aerated waters and beverages sold or kept for sale in bottles, other than—

(a) liquors for the sale of which an excise licence is required, or

(b) syrups or other liquors intended to be consumed only in a diluted form,

for sale in, or to persons in, a State management district.

(2) The Secretary of State may by order declare that, during such period as may be specified in the order, the last foregoing sub-paragraph shall have effect as if the words "in the Carlisle district specified in Part I of this Schedule" were omitted.

(3) The power of the Secretary of State to make orders under this paragraph shall be exercisable by statutory instrument subject to annulment by resolution of either House of Parliament.

5. The provision and maintenance of storage accommodation, and the provision of transport, in connection with the carrying on of any activity referred to in the foregoing paragraphs of this Part of this Schedule.

6. The carrying on of any business which, by reason of being carried on outside the State management districts, does not fall within section one of this Act or the foregoing paragraphs of this Schedule, so long as the business is carried on in the premises in which at the commencement of this Act it was being carried on on behalf of the Secretary of State in pursuance of any of the provisions of Part II of the Act of 1921 or the Third Schedule thereto.

7. The carrying on of such activities and the doing of such things (including, without prejudice to the generality of this paragraph, the purchase of the whole or any part of any business and the assets and liabilities thereof), incidental to any of the activities specified in section one of this Act and the foregoing paragraphs of this Schedule as appear to the Secretary of State necessary or expedient.

PART III.

Supplemental provisions as to exercise of functions of Secretary of State.

8. Notwithstanding anything in the enactments relating to the sale and supply of intoxicating liquor, to the sale of tobacco and to entertainments and recreation, any of the activities specified in section one of this Act and the foregoing provisions of this Schedule may be carried on by or on behalf of the Secretary of State, in premises

occupied by him, without the need for any licence, and shall not be subject to any restrictions imposed by law on the carrying on of such activities :

1ST SCH.
—cont.

Provided that—

- (a) any person engaged in any such activity on behalf of the Secretary of State shall be subject to any statutory provisions affecting the holders of licences, and the occupiers of premises licensed, for that activity in like manner as if he were the holder of the appropriate licence, and to any restrictions imposed by law on persons carrying on that activity ; and
- (b) where in any area as defined by section fifteen of the Temperance (Scotland) Act, 1913, being an area situated in whole or in part in a State management district, a resolution has been declared carried as a result of a poll taken under the said Act, the Secretary of State shall give effect to that resolution in that area or, as the case may be, in such part thereof as is situated in a State management district.

9.—(1) Any instrument in connection with the acquisition, management or disposal of any land or other property in the exercise of the functions of the Secretary of State relating to State management districts, being an instrument to which the Secretary of State is expressed to be a party, shall be deemed to be validly executed by him if it is executed on his behalf by an Under Secretary of State or any other person authorised in that behalf by the Secretary of State, and any such instrument purporting to have been executed as aforesaid on behalf of the Secretary of State shall, until the contrary is proved, be deemed to have been so executed on his behalf.

(2) The method provided by this paragraph for the execution of such an instrument as aforesaid shall be in addition to any other method available by law for the execution of such an instrument on behalf of the Secretary of State, and this paragraph shall not be construed as affecting the validity of any method by which other instruments may be executed on behalf of the Secretary of State.

(3) This paragraph shall not extend to Scotland.

10. In the application of this Schedule to Scotland the expression "intoxicating liquor" means exciseable liquor, and the expression "licence" includes a certificate as defined in Part VII of the Licensing (Scotland) Act, 1903.

SECOND SCHEDULE.

Section 16.

SECTION FORTY OF ACT OF 1910 AS AMENDED BY THIS ACT.

40.—(1) No justice shall act for any purpose under this Act in any county or county borough, or be capable of being appointed or being a member of any committee therein for any such purpose, who is, or is in partnership with, a common brewer, distiller, maker of malt for sale, or retailer of malt or of any intoxicating liquor, in that county or county borough : Disqualification of justices.

Provided that this provision shall not prevent a justice adjudicating in the case of persons charged with offences under section twelve of the Licensing Act, 1872, or section two of the Licensing Act, 1902.

2ND SCH.
—cont.

(2) No justice who holds any share or stock in a company which is such a brewer, distiller, maker of malt or retailer as aforesaid in any county or county borough shall be capable of being appointed or being a member of any divisional licensing committee or county confirming and compensation committee in the county, or of any borough licensing or confirming and compensation committee in the borough, as the case may be, unless before his appointment as a member of the committee he has disclosed to the justices appointing him the fact that he holds the share or stock :

Provided that a member of any such committee disqualified from being a member thereof by acquiring any such share or stock may be re-appointed if before his re-appointment he has disclosed to the justices re-appointing him the fact that he has acquired the share or stock.

(3) A person who is the beneficial owner of any such share or stock as aforesaid held by him (whether his beneficial ownership extends to the whole holding or to a part thereof or to an interest therein only) shall not be appointed or re-appointed to be a member of any such committee as aforesaid unless the justices appointing or re-appointing him are satisfied that the extent to which the company in question carries on or is interested in the business of brewing, distilling, making of malt for sale or retailing of malt or of any intoxicating liquor is so small in comparison with its whole business that the fact that the said person is interested in the company affords no reasonable ground for suggesting that he is not a proper person to be a member of such a committee.

(4) No justice shall act for any purpose under this Act in respect of any premises in the profits of which that justice is interested, or of which he is wholly or partly the owner, lessee, or occupier, or for the owner, lessee, or occupier of which he is manager or agent :

Provided that a justice shall not be disqualified under this provision to act in respect of any premises by reason of his having vested in him a legal interest only, and not a beneficial interest, in those premises or the profits thereof.

(5) No act done by any justice disqualified by this section shall be invalid by reason only of that disqualification, and no act done by any justice who by virtue of this section has ceased to be a member of a committee shall be invalid by reason only of the cessation of membership.

(6) If any justice, knowing that the circumstances are such that under this Act he is disqualified from acting for any of the purposes thereof, acts as a justice for that purpose he shall be liable in respect of each offence to a fine not exceeding one hundred pounds, to be recovered by action in the High Court :

Provided that a justice shall not be liable to a fine in respect of more than one offence committed by him under this section before the institution of any proceedings for the recovery of the fine.

THIRD SCHEDULE.

Sections 19, 22,
24.

CERTIFICATION OF CLUB PREMISES FOR MUSIC AND DANCING.

1. Where, on the application of the secretary of a registered club, the London County Council are satisfied as respects any premises of the club situated as mentioned in subsection (1) of section nineteen of this Act that the premises (whether or not they are kept or intended to be kept for public dancing, music or other public entertainment of the like kind) in all other respects fulfil the Council's requirements for the grant of a music and dancing licence, the Council may grant a certificate under this Schedule as respects the premises.

2. A certificate under this Schedule may be granted on such terms, and subject to such conditions or restrictions, as the Council may think fit and, subject to the following provisions of this Schedule, shall remain in force for such period as may be specified therein.

3. A certificate granted under this Schedule may from time to time be renewed by the London County Council on the application of the secretary of the club; and the foregoing provisions of this Schedule shall apply to the renewal of such certificates as they apply to the grant thereof.

4. Where a certificate under this Schedule as respects a club has been granted or renewed subject to any condition or restriction, the condition or restriction may be waived or modified by the London County Council on the application of the secretary of the club.

5. If while a certificate is in force under this Schedule it appears to the London County Council—

(a) that any condition or restriction subject to which the certificate was granted or last renewed, as the case may be, has not been complied with or, in the case of a condition or restriction which has been modified under the last foregoing paragraph, that the condition or restriction as so modified has not been complied with, and

(b) that the condition or restriction has not been waived under the last foregoing paragraph,

the Council may, after giving to the secretary of the club not less than seven days' notice that the Council are considering revoking the certificate, specifying the ground for the revocation thereof, and after affording to the secretary an opportunity of being heard by a person appointed by the Council for the purpose, revoke the certificate.

FOURTH SCHEDULE.

Section 41.

ENACTMENTS REPEALED.

PART I.

Enactments Repealed as from passing of Act.

Session and Chapter.	Enactment Repealed.	Extent of Repeal.
11 & 12 Geo. 5. c. 42.	The Licensing Act, 1921	Part II and the Second, Third and Fourth Schedules.

4TH SCH.
—cont.

PART II.

Enactments Repealed as from appointed day.

Session and Chapter.	Enactment Repealed.	Extent of Repeal.
10 Edw. 7 and 1 Geo. 5. c. 24.	The Licensing (Consolidation) Act, 1910.	In section two, subsection (2) and, so far as they relate to county boroughs, paragraphs (b) and (c) of subsection (3); in section three so far as it relates to county boroughs, in subsection (1) the words from "during" to the end of the subsection and subsection (2); in section five, subsection (1); section six; section eight; in section thirteen, in subsection (3) the words from "to the party" to "before them", and subsection (4); in section forty, subsection (5).

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Ordnance Board Transfer Act, 1855	18 & 19 Vict. c. 117.
Refreshment Houses Act, 1860	23 & 24 Vict. c. 27.
Licensing Act, 1872	35 & 36 Vict. c. 94.
Licensing Act, 1902	2 Edw. 7. c. 28.
Licensing (Scotland) Act, 1903	3 Edw. 7. c. 25.
Finance (1909-10) Act, 1910	10 Edw. 7 & 1 Geo. 5. c. 8.
Licensing (Consolidation) Act, 1910	10 Edw. 7 & 1 Geo. 5. c. 24.
Temperance (Scotland) Act, 1913	3 & 4 Geo. 5. c. 33.
Acquisition of Land (Assessment of Compensation) Act, 1919	9 & 10 Geo. 5. c. 57.
Police Pensions Act, 1921	11 & 12 Geo. 5. c. 31.
Licensing Act, 1921	11 & 12 Geo. 5. c. 42.
Finance Act, 1942	6 & 7 Geo. 6. c. 28.
Licensing Planning (Temporary Provisions) Act, 1945	8 & 9 Geo. 6. c. 15.
Police Act, 1946	9 & 10 Geo. 6. c. 46.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6. c. 49.
Finance Act, 1946	9 & 10 Geo. 6. c. 64.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Water (Scotland) Act, 1949	12 & 13 Geo. 6. c. 31.
Lands Tribunal Act, 1949	12 & 13 Geo. 6. c. 42.